

K Ravinder vs K Neeraja , Tejaswi on 11 March, 2026

Author: K.Lakshman

Bench: K. Lakshman

IN THE HIGH COURT FOR THE STATE OF TELANGANA
AT HYDERABAD

THE HON'BLE SRI JUSTICE K. LAKSHMAN
AND
THE HON'BLE SRI JUSTICE B.R.MADHUSUDHAN RAO

FAMILY COURT APPEAL No.106 of 2016

DATE OF JUDGMENT: 11.03.2026

Between:

xxxxxxx

Appellant.

AND

xxxxxxx

Respondent.

This Court made the following:

JUDGMENT (Per Hon'ble Sri Justice K.Lakshman)

Notice sent to the respondent was returned unserved with an endorsement 'addressee out of station/absent'. Sending notice to the respondent to the address available in the bundle is sufficient in terms of Section 27 of the General Clauses Act.

2. Heard Ms.Sowmya, learned counsel representing Mr.Sanisetty Venkateswarlu, learned counsel for the appellant. We have perused the record.

3. Feeling aggrieved and dissatisfied with the order dated 28.03.2016 in O.P.No.971 of 2011 passed by the learned Judge, Family Court, Rangareddy District at L.B.Nagar, appellant/husband preferred the present appeal.

4. Appellant is the husband and respondent is the wife and their marriage was performed on 25.02.2004 as per Hindu rites and caste customs. It was an arranged marriage. The said marriage was consummated. Out of the wedlock, they were blessed with a female child.

5. Appellant/husband has filed a petition under Section 13(1)(ia) and (ib) of the Hindu Marriage Act, 1955 vide O.P.No.971 of 2011 against the respondent/wife seeking dissolution of marriage on the

grounds of cruelty and desertion. According to the appellant/husband, the moment respondent entered into matrimonial home, her behavior turned out to be contrary and respondent's family has no values, respect, culture, morals and they are very typical and odd persons and that they only know to drink, there may be occasion or not and that they are habituated to drink cheap liquor and no ethics and they always speak lies even for small things. Respondent always used to make fun of him with derogatory comments on his physical features and she used to compare him with her village boy saying that he has masculine arms and she was very attracted towards that boy. She never cooperated with him in leading conjugal life and bluntly used to say that she was not interested as the appellant was not good looking and handsome. She used to wake up in the morning at 10.00 A.M. and when he tried to talk with her, she used to shout and throw household articles and when he tried to explain her to mend her ways she used to threaten him that she will commit suicide.

6. Appellant further contended that the family members of the respondent decided to perform her marriage with her paternal aunt's son, namely, Pogaku Nagaraju but the same could not happen. She never considered the appellant as her husband and she used to desert him without any information. Respondent attitude caused mental agony and torture to the appellant and due to the said attitude, he deprived for matrimonial and conjugal life. She left the matrimonial home along with her child on 27.01.2009 without any justifiable reason and appellant tried beyond all the possibility to get her back, but his efforts became futile. Therefore, according to the appellant, respondent subjected him to cruelty and deserted him.

7. Respondent filed counter denying the said allegations made by the appellant. According to the respondent, appellant and his family members harassed her on petty issues and after the birth of the female child the family members of the appellant started harassing her to get additional dowry. Appellant made false allegations against her and harassed her both mentally and physically, but she tolerated the said harassment with a view that the appellant may change his attitude. Appellant restricted her moments and always threatened her stating that he will leave her if she did not listen to him and his parents. She never harassed the appellant at any point of time for any purpose and she never deserted him at any point of time.

8. To prove the said cruelty and desertion, appellant examined himself as PW1 and his mother as PW.2. He has filed Ex.A.1 wedding card and Ex.A.2 photostat copy of ration card. Respondent herself examined as RW.1, her father as RW.2 and her father's close friend as RW.3. However, she did not exhibit any documents. On consideration of the said evidence, both oral and documentary, vide the impugned order, learned Family Court dismissed the aforesaid O.P. holding that the appellant failed to plead and prove the aforesaid cruelty and desertion. Challenging the said order, appellant preferred the present appeal.

9. It is the specific contention of the learned counsel for the appellant that during the cross-examination of respondent (RW.1) and her father (RW.2), they categorically admitted that the respondent has been staying with her parents from the month of August, 2011 onwards. Thus, respondent has deserted the appellant. Respondent started moving closely with one Pogaku Nagaraju and also with his family members. She harassed the appellant and his family members.

Therefore, respondent subjected the appellant to cruelty.

10. As discussed supra, it is the appellant who filed the aforesaid O.P. seeking dissolution of marriage on the grounds of cruelty and desertion. Therefore, burden lies on him to plead and prove the same by adducing cogent evidence.

11. It is apt to note that during the cross-examination of appellant, he categorically admitted that a panchayat was held by the elders of both sides for mental cruelty of the respondent but he has not stated in his chief-examination affidavit with regard to the said facts. With regard to the contents in paragraph No.8 of his chief-examination affidavit, he has spoken to the respondent, her family members and elders, in turn, they advised him to keep quite. He along with the respondent lived in one Doctor's house as tenant for four to five years.

12. PW.2, mediator, also categorically admitted that a panchayat was held at Nampally between the appellant and the respondent. Respondent stated that she will join the appellant and lead the matrimonial life with him. He has further admitted that he has not seen the instances of cruelty of the respondent towards the appellant and the same were happened only in front of the parents of the appellant. He further admitted that during panchayat he advised the respondent to join the company of the appellant. He also advised the parents of the respondent to send the respondent with appellant for leading marital life.

13. As discussed supra, in the aforesaid O.P. appellant has contended that the behavior of the respondent and her family members is different and they used to drink alcohol and they did not have values, culture, morals, etc. But he did not examine any witness to prove the same. The marriage was performed on 25.02.2004 and they were blessed with a female child. Appellant has filed the aforesaid O.P. on 19.07.2011. Therefore, appellant led his marital life with the respondent from 25.02.2004 to 19.07.2011 and he claims that from the beginning the attitude of the respondent and her family members was cruel towards him.

14. Human mind is extremely complex and human behaviour is equally complicated. Similarly human ingenuity has no bound, therefore, to assimilate the entire human behaviour in one definition is almost impossible. What is cruelty in one case may not amount to cruelty in other case. The concept of cruelty differs from person to person depending upon his upbringing, level of sensitivity, educational, family and cultural background, financial position, social status, customs, traditions, religious beliefs, human values and their value system as observed by the Apex Court in Samar Ghosh v. Jaya Ghosh ¹.

15. Matrimonial cases before the Courts pose a different challenge, quite unlike any other, as we are dealing with human relationships with its bundle of emotions, with all its faults and frailties. It is not possible in every case to pin point to an act of "cruelty" or blameworthy conduct of the spouse. The nature of relationship, the general behaviour of the parties towards each other, or long separation between the two are relevant factors which a Court must take into consideration as observed by the Apex Court in Rakesh Raman v. Smt. Kavita².

16. Cruelty is a course or conduct of one, which is adversely affecting the other. The cruelty may be mental or physical, intentional or unintentional. The cruelty alleged may largely depend upon the type of life the parties are accustomed to or their economic and social conditions and their culture and human values which they attach importance. Each case has to be . (2007) 4 SCC 511 . 2023 AIR (SC 2144 decided on its own merits as held by the Apex Court in Naveen Kohli v. Neelu Kohli 3.

17. Cruelty is not defined in any statute. It is a course or conduct of one, which is adversely affecting the other. We have to consider the entire evidence and the allegations made by the husband, assess the same and come to a conclusion that the same amounts to cruelty or not.

18. As discussed supra, though the appellant made an allegation against the respondent that the respondent used to move friendly with one Pogaku Nagaraju, belongs to her village, he did not examine any witness or file any document to prove the same. Mere giving shake-hand to the known person of the same village does not amount to cruelty. Therefore, appellant failed to prove both cruelty and desertion. On consideration of the said aspects only, learned Family Court dismissed the aforesaid O.P. filed by the appellant. It is a reasoned order and there is no error in it. Therefore, appellant herein failed to make out any case to interfere with the impugned order.

. (2006) 4 SCC 558

19. In the light of the aforesaid discussion, this appeal is liable to be dismissed and accordingly, the same is dismissed.

Miscellaneous applications pending, if any, shall stand closed. There shall be no order as to costs.

_____ K. LAKSHMAN, J _____
B.R.MADHUSUDHAN RAO, J 11th March, 2026.

YNK